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STANDARD FORM 1449 (REV. 2/2012)
Prescribed by GSA - FAR (48 CFR) 53.212

19. ITEM NO.	20. SCHEDULE OF SUPPLIES/SERVICES	21. QUANTITY	22. UNIT	23. UNIT PRICE	24. AMOUNT

32a. QUANTITY IN COLUMN 21 HAS BEEN

☐ RECEIVED ☐ INSPECTED ☐ ACCEPTED, AND CONFORMS TO THE CONTRACT, EXCEPT AS NOTED: _____

32b. SIGNATURE OF AUTHORIZED GOVERNMENT REPRESENTATIVE	32c. DATE	32d. PRINTED NAME AND TITLE OF AUTHORIZED GOVERNMENT REPRESENTATIVE

32e. MAILING ADDRESS OF AUTHORIZED GOVERNMENT REPRESENTATIVE	32f. TELEPHONE NUMBER OF AUTHORIZED GOVERNMENT REPRESENTATIVE
	32g. E-MAIL OF AUTHORIZED GOVERNMENT REPRESENTATIVE

33. SHIP NUMBER	34. VOUCHER NUMBER	35. AMOUNT VERIFIED CORRECT FOR	36. PAYMENT	37. CHECK NUMBER
☐ PARTIAL ☐ FINAL			☐ COMPLETE ☐ PARTIAL ☐ FINAL	

38. S/R ACCOUNT NO.	39. S/R VOUCHER NUMBER	40. PAID BY

41a. I CERTIFY THIS ACCOUNT IS CORRECT AND PROPER FOR PAYMENT	42a. RECEIVED BY (<i>Print</i>)
41b. SIGNATURE AND TITLE OF CERTIFYING OFFICER	42b. RECEIVED AT (<i>Location</i>)
41c. DATE	42c. DATE REC'D (YY/MM/DD)
	42d. TOTAL CONTAINERS

SUPPLIES/SERVICES: 2610-N30010067

ITEM DESCRIPTION:

Tire, Pneumatic 12.00-20 Pneumatic Rubber Tire Forklift with Tube and Flap; Industrial Deep Lug; Deep Grooved Pattern; Cut and Wear Resistant; 28 Ply; 12.00-20; O.D. 45.2", Section Width 12.4", Rim Width 8.5", PSI 149, Max Load 18,783, Tread Depth (32nds) - 52; Similar or equal to Forklift Tire Company SKU 120020-28PR-FTC-TTF

DLA issues this document using the DoD authorized unit of issue, please refer to the following URL to determine the corresponding ANSI X12 unit of issue.

https://view.officeapps.live.com/op/view.aspx?src=https%3A%2F%2Fwww.dla.mil%2FPortals%2F104%2FDocuments%2FDLMS%2FeApplications%2FLogDataAdmin%2FUnit_of_Issue_and_Purchase_Unit.xlsx&wdOrigin=BROWSELINK

ITEM NO.	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0001	2610-N30010067 TIRE, PNEUMATIC 12.00-20	25.000	EA	\$ _____	\$ _____

PRICING TERMS: Firm Fixed Price

QTY VARIANCE: PLUS 0% MINUS 0%

PREP FOR DELIVERY:

WILL BE PACKAGED IN ACCORDANCE WITH ASTM D3951.

SB3213

DLA DISTRIBUTION RED RIVER
BOSS REC OFFICE BLDG 499
10TH STREET AND AVENUE K
TEXARKANA TX 75507-5000
US

GOVT USE

ITEM	PR	External		External		Customer RDD/ Need Ship Date
		PRLI	PR	PRLI	Material	
0001	7015535883	0001	60440AAR	N/A	N/A	N/A

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Part 12 Clauses

ADDITIONAL DETAILS

INTRODUCTION:

This is a combined synopsis/solicitation for commercial products or commercial services prepared in accordance with FAR Part 12 for cardboard shipping boxes for DLA Distribution Red River, TX. This announcement constitutes the only solicitation. Offers are being requested and a separate written solicitation will not be issued.

POINT OF CONTACT:

Acquisition Specialist Name: Deborah Johnson
Acquisition Specialist Email Address: Deborah.L.Johnson@dla.mil
Acquisition Specialist Phone Number: 614-693-7739
KO Name: Erik J. Smith
KO Address: 5430 Mifflin Avenue, New Cumberland, PA 17070
KO Email Address: erik.smith@dla.mil

SECTION ONE: NOTICE TO QUOTERS

1. Solicitation number **SP3300-26-Q-0125** is issued as a Request for Quotation (RFQ), to provide **Forklift Pneumatic Tires for DLA Distribution Red River, TX.**
2. This acquisition is being solicited as a **100% Small Business set-aside**. The NAICS code is **326211** and the size standard is **1,500 employees**. The Product or Service Code for this acquisition is **2610**.
3. Closing date and time for questions: **12:00PM EST on May 7, 2026.**
4. Closing date and time for quotes: **10:00 AM EST on May 11, 2026.**
5. As a result of this solicitation, one (1) firm-fixed-price purchase order will be issued.
6. This solicitation incorporates provisions and clauses by reference. The full text of provisions and clauses may be accessed electronically at www.acquisition.gov

SECTION TWO: SCHEDULE OF SUPPLIES AND SERVICES

CLIN Description Unit of Issue Quantity Unit Price Total Price

0001 Tire, Pneumatic 12.00-20 Pneumatic Rubber Tire Forklift with Tube and Flap; Industrial Deep Lug; Deep Grooved Pattern; Cut and Wear Resistant; 28 Ply; 12.00-20; O.D.45.2", Section Width 12.4", Rim Width 8.5", PSI 149, Max Load 18,783,Tread Depth (32nds) - 52; Similar or equal to Forklift Tire Company SKU120020-28PR-FTC-TTF EA 25 \$ \$				
Total \$				

1. FOB Destination shipping shall be included in the unit price.

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Part 12 Clauses (CONTINUED)

2. Quoters shall quote Firm-Fixed Unit Prices for all CLINs.

3. Manufacturer or Distributor Designation:

The quoter is the Manufacturer OR Distributor of this product (check one):

Manufacturer Distributor

If a Distributor, the quoter is quoting a product made by the following manufacturer:

If a Distributor, quoter is free to set their own pricing: _____YES or _____NO

SECTION 3: DESCRIPTION/PWS**CLIN Government Salient Characteristics Yes / No Alternate Vendor Salient Characteristics**

0001 Tire, Pneumatic 12.00-20 Pneumatic Rubber Tire Forklift with Tube and Flap; Industrial Deep Lug; Deep Grooved Pattern; Cut and Wear Resistant; 28 Ply; 12.00-20; O.D.45.2", Section Width 12.4", Rim Width 8.5", PSI 149, Max Load 18,783,Tread Depth (32nds) - 52; Similar or equal to Forklift Tire Company SKU120020-28PR-FTC-TTF
Material Number: N30010067; PSC 2610

SECTION 4: PACKAGING

There are no special packaging requirements for this requirement

SECTION 5: INSPECTION/ACCEPTANCE

1. **Proof Of Delivery:** Acceptable Proof of Delivery documents include: Shipping Documentation; Materials Inspection and Receiving Report (DD250), Bill of Lading, Packing List, Tracking/Delivery Confirmation or Invoice. To ensure prompt payment to your company, the Proof of Deliveries must include the following:

- CONTRACT NUMBER or ORIGINAL DOCUMENT NUMBER
- DELIVERY ORDER NUMBER (as applicable)
- CLIN /MATERIAL NUMBER
- SPECIFIC QUANTITY SHIPPED IN REFERENCE TO QUANTITY ORDERED
- PRINTED NAME AND WRITTEN SIGNATURE OF A GOVERNMENT EMPLOYEE

SECTION 6: DELIVERY/PERIOD OF PERFORMANCE/ORDERING PERIOD

1. Delivery Destination:

SB3213
DLA DISTRIBUTION RED RIVER
BOSS REC OFFICE BLDG 499

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Part 12 Clauses (CONTINUED)

10TH STREET AND AVENUE K
TEXARKANA TX 75507-5000
US

2. Delivery Schedule: Requested delivery lead time is **30 days After Receipt of Order**. If you are unable to meet this delivery lead, time please provide your best possible delivery lead time in days:
3. Please ensure that the time frame you enter for delivery is realistic and achievable. Requests for delivery date extensions may only be granted with an economic consideration for the Government.
4. FOB: **Destination**

SECTION 7: CONTRACT ADMINISTRATION DATA

1. **Invoicing And Payment:** Invoicing and Payment will be made via Wide Area Work Flow. See DFARS Clause 252.232-7006.
2. **System for Award Management (SAM):** A prospective awardee shall be registered in the SAM database by the quotation submission date, during performance and through final payment of any contract resulting from this solicitation. Quoters may obtain information on registration and annual confirmation requirements via the SAM website at <http://www.sam.gov>. Quoters shall provide their company name, address, point of contact, telephone number and CAGE code exactly as it appears in the SAM Database.

Company Name:

Company Address:

Telephone:

Cage Code:

Point of Contact:

Email:

Manufacturer:

SECTION 8: SPECIAL CONTRACT REQUIREMENTS

1. **Mark Contract Number on all Correspondence:** Contractor must mark the contract or purchase order number on all paperwork and shipments. The order number must appear on the exterior of the shipment. Failure to follow these instructions will hold up payment to you and could result in the return of merchandise at your expense.
2. **Requirements for Pallets:** Material must be shipped on serviceable, winged pallets in accordance with MD00100452, Revision C, dated 09/2016. Please reference the following link for more information:

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<https://www.dla.mil/LandandMaritime/Offers/Services/TechnicalSupport/Logistics/Packaging/Palletization.aspx>

The complete specification for winged pallets can be found in Part 9 of ANSI MH1. The pallet must be heat treated, certified, and stamped or branded with the appropriate certification markings in accordance with DOD Manual 4140.65-M.

Please reference the DLA Master List of Technical and Quality Requirements for information at this link: <https://www.dla.mil/HQ/Acquisition/Offers/DLAD/TechnicalandQualityMLofRequirements/>

Additional information can be found at:

<https://www.dla.mil/LandandMaritime/Offers/Services/TechnicalSupport/Logistics/Packaging/WoodPack.aspx>

Failure to deliver supplies on pallets with these specifications will result in the Government not accepting the shipment when it arrives at destination. The quoter must quote shipment of supplies in accordance with this requirement.

SECTION 9: CLAUSES

Addenda to FAR 52.212-4 Terms and Conditions --Commercial Products and Commercial Services (NOV 2025)

FAR 52.203-19 Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements
FAR 52.204-10 Reporting Executive Compensation and First-Tier Subcontract Awards
FAR 52.204-13 System for Award Management --Maintenance
FAR 52.209-6 Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment
FAR 52.209-10 Prohibition on Contracting with Inverted Domestic Corporations
FAR 52.219-6 Notice of Total Small Business Set-Aside
FAR 52.222-3 Convict Labor
FAR 52.222-19 Child Labor --Cooperation with Authorities and Remedies
FAR 52.222-36 Equal Opportunity for Workers with Disabilities
FAR 52.222-50 Combating Trafficking in Persons
FAR 52.222-90 Addressing DEI Discrimination by Federal Contractors (DEVIATION 2026-O0040, REVISION 1)(APR 2026)
FAR 52.226-8 Encouraging Contractor Policies to Ban Text Messaging While Driving
FAR 52.232-1 Payments
FAR 52.232-8 Discounts for Prompt Payment
FAR 52.232-11 Extras
FAR 52.232-23 Assignment of Claims
FAR 52.232-33 Payment by Electronic Funds Transfer --System for Award Management
FAR 52.232-40 Providing Accelerated Payments to Small Business Subcontractors
FAR 52.233-3 Protest After Award
FAR 52.233-4 Applicable Law for Breach of Contract Claim
FAR 52.240-91 Security Prohibitions and Exclusions
FAR 52.247-34 F.o.b Destination

DFARS 252.203-7000 Requirements Relating to Compensation of Former DoD Officials
DFARS 252.203-7002 Requirement to Inform Employees of Whistleblower Rights
DFARS 252.223-7008 Prohibition of Hexavalent Chromium
DFARS 252.225-7001 Buy American and Balance of Payments Program

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Part 12 Clauses (CONTINUED)

DFARS 252.225-7012 Preference for Certain Domestic Commodities
 DFARS 252.225-7036 Buy American --Free Trade Agreements --Balance of Payments Program
 DFARS 252.225-7048 Export-Controlled Items
 DFARS 252.225-7056 Prohibition Regarding Business Operations with the Maduro Regime
 DFARS 252.225-7060 Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region
 DFARS 252.232-7003 Electronic Submission of Payment Requests and Receiving Reports
 DFARS 252.232-7010 Levies on Contract Payments
 DFARS 252.243-7001 Pricing of Contract Modifications
 DFARS 252.244-7000 Subcontracts for Commercial Products and Commercial Services
 DFARS 252.247-7023 Transportation of Supplies by Sea

FAR 52.252-2 Clauses Incorporated by Reference (FEB 1998)

This notice incorporates provisions and clauses in effect under:

This contract incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the contracting officer will make their full text available. Also, the full text of a clause may be accessed electronically at this/these address(es):

The complete text of any of the clauses and provisions are available electronically from the following sites:

FAR - <https://www.ecfr.gov/current/title-48/chapter-1>

DFARS - <https://www.acq.osd.mil/dpap/dars/dfarspgi/current/>

DLAD - <https://www.dla.mil/HQ/Acquisition/Policy-and-Directives/>

(End of Clause)

DFARS 252.232-7006 Wide Area Workflow Payment Instructions (JAN 2023)

(a) Definitions. As used in this clause --

“Department of Defense Activity Address Code (DoDAAC)” is a six position code that uniquely identifies a unit, activity, or organization.

“Document type” means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

“Local processing office (LPO)” is the office responsible for payment certification when payment certification is done external to the entitlement system.

“Payment request” and “receiving report” are defined in the clause at [252.232-7003](#), Electronic Submission of Payment Requests and Receiving Reports.

(b) Electronic invoicing. The WAWF system provides the method to electronically process vendor payment requests and

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receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) [252.232-7003](#), Electronic Submission of Payment Requests and Receiving Reports.

(c) **WAWF access.** To access WAWF, the Contractor shall --

- (1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and
- (2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) **WAWF training.** The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the "Web Based Training" link on the WAWF home page at <https://wawf.eb.mil/>

(e) **WAWF methods of document submission.** Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) **WAWF payment instructions.** The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) Document type. The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items --

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

Invoice

(Contracting Officer: Insert applicable invoice and receiving report document type(s) for fixed price line items that require shipment of a deliverable.)

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

Not Applicable

(Contracting Officer: Insert either "Invoice 2in1" or the applicable invoice and receiving report document type(s) for fixed price line items for services.)

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial item financing, submit a commercial item financing request.

(2) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF "combo" document type to create some combinations of invoice and receiving report in one step.]

(3) Document routing. The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

Field Name in WAWF -- Data to be entered in WAWF

Pay Official DoDAAC -- **SL4701**

Issue By DoDAAC -- **SP3300**

Admin DoDAAC** -- **SP3300**

Inspect By DoDAAC -- N/A

Ship To Code - **SB3213**

Ship From Code -- N/A

Mark For Code -- N/A

Service Approver (DoDAAC) -- N/A

Service Acceptor (DoDAAC) - N/A

Accept at Other DoDAAC -- N/A

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Part 12 Clauses (CONTINUED)

LPO DoDAAC -- N/A

DCAA Auditor DoDAAC -- N/A

Other DoDAAC(s) -- N/A

- (4) Payment request. The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.
- (5) Receiving report. The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) WAWF point of contact.

- (1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity's WAWF point of contact. Deborah.L.Johnson@dla.mil
- (2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of Clause)

DLAD PROCUREMENT NOTES:

C02 Manufacturing Phase-Out or Discontinuation of Production, Diminishing Sources, and Obsolete Materials or Components (DEC 2016)

The contractor shall notify the contracting officer immediately upon determining the unavailability of obsolete materials or components. The contractor may recommend a solution to include the impact on the contract price and delivery. The contractor shall not initiate any item redesign or incur any additional costs without the express, written authorization of the contracting officer.

In the event that manufacturing phase-out or discontinuance of production of such items is contemplated, the contractor is required to notify the contracting officer and publish the discontinuance in the Government-Industry Data Exchange Program (GIDEP), where feasible; and to provide immediate advance notice of production phase-out to DLA DMSMS at dscm.dmsms@dla.mil.

C03 Contractor Retention of Supply Chain Traceability Documentation (JUN 2023)

- (1) By submitting a quotation or offer, the contractor, if it is not the manufacturer of the item, is confirming it currently has, or will obtain before delivery, and shall retain documented evidence (supply chain traceability documentation), as described in paragraph (2) of this procurement note, demonstrating the item is from the approved manufacturer and conforms to the technical requirements.
- (2) At a minimum, the supply chain traceability documentation for the item shall include: basic item description, part number and/or national stock number, manufacturing source, manufacturing source's Commercial and Government Entity (CAGE) code, and clear identification of the name and location of all supply chain intermediaries between the manufacturer to the contractor to item(s) acceptance by the Government. The documentation should also include, if available, the manufacturer's batch identification for the item(s), such as date codes, lot codes, or serial numbers.
- (3) Contractors can find examples of acceptable supply chain traceability documentation at the Counterfeit Detection and Avoidance Program (CDAP) website (<http://www.dla.mil/LandandMaritime/Business/Selling/Counterfeit-Detection-Avoidance-Program/>).
- (4) The contractor shall immediately make documentation available to the contracting officer upon request. The contracting officer determines the acceptability and sufficiency of documentation. The contractor shall retain supply chain traceability documentation for six years after final payment under this contract for audit and other valid government purposes. If the contractor fails to retain or provide the documentation, or the contracting officer finds the documentation to be unacceptable, the contracting officer may take corrective action, including, but not limited to, cancellation of undelivered orders or rejection of delivered supplies.

(End of Procurement Note)

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Part 12 Clauses (CONTINUED)

C14 Correction of Nonconforming Packaging or Marking (MAY 2020)

- (1) The Government may correct nonconforming packaging or marking for receipts of DLA- owned materiel if the estimated costs of correction are \$1,000 or less. The contracting officer will advise the contractor of the discrepancy and that the Government has corrected the packaging or marking. The contracting officer will make a determination concerning appropriate reimbursement by the contractor for the Government's costs to correct the deficiencies. Upon determining that reimbursement is required, the contracting officer will send a notice to the contractor. Upon receipt of notice from the contracting officer, the contractor shall reimburse the Government for the costs incurred by the Government to correct the deficiencies.
- (2) If the estimated costs of correction for receipts of DLA-owned materiel are more than \$1,000, the contracting officer will advise the contractor of the discrepancy and have the materiel returned to the contractor for correction/resubmittal; or, if there are urgent requirements, have the Government remediate the discrepancy at the contractor's expense. If the Government remediates the discrepancy, the contracting officer will make a determination concerning appropriate reimbursement by the contractor for the Government's costs to correct the deficiencies. Upon determining that reimbursement is required, the contracting officer will send a notice to the contractor. Upon receipt of notice from the contracting officer, the contractor shall reimburse the Government for the costs incurred by the Government to correct the deficiencies.

(End of Procurement Note)

L06 Agency Protests (DEC 2016)

Interested parties may file an agency level protest with the contracting officer or may request an independent review by the chief of the contracting office (CCO). Independent review by the CCO is an alternative to consideration by the contracting officer and is not available as an appellate review of a contracting officer decision on a protest previously filed with the contracting officer. Absent a clear indication of the intent to file an agency level protest with the CCO for independent review, protests will be presumed to be protests to the contracting officer.

(End of Text)

SECTION 10: DOCUMENTS, EXHIBITS, AND ATTACHMENTS

There are no documents, exhibits or attachments

SECTION 11: REPRESENTATIONS, CERTIFICATIONS, AND OTHER STATEMENTS OF QUOTERS OR OFFERORS

Not Applicable

SECTION 12: PROVISIONS

FAR 52.203-18 Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation

FAR 52.204-7 System for Award Management --Registration

FAR 52.209-2 Prohibition on Contracting with Inverted Domestic Corporations --Representation

FAR 52.209-11 Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law

FAR 52.222-18 Certification Regarding Knowledge of Child Labor for Listed End Products

FAR 52.240-90 Security Prohibitions and Exclusions Representations and Certifications

DFARS 252.203-7005 Representation Relating to Compensation of Former DoD Officials

DFARS 252.204-7024 Notice on the Use of the Supplier Performance Risk System

DFARS 252.225-7000 Buy American --Balance of Payments Program Certificate

DFARS 252.225-7035 Buy American --Free Trade Agreements --Balance of Payments Program Certificate

DFARS 252.225-7055 Representation Regarding Business Operations with the Maduro Regime

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Part 12 Clauses (CONTINUED)

DFARS 252.225-7059 Prohibition on Certain Procurements from the Xinjiang Uyghur Autonomous Region --Representation

FAR 52.216-1 Type of Contract (APR 1984)

The Government contemplates award of a **single Firm Fixed Price purchase order** resulting from this solicitation.

(End of Provision)

FAR 52.233-2 Service of Protest (SEP 2006)

- (a)** Protests, as defined in section 33.101 of the Federal Acquisition Regulation, that are filed directly with an agency, and copies of any protests that are filed with the Government Accountability Office (GAO), shall be served on the Contracting Officer by obtaining written and dated acknowledgment of receipt from DLA Distribution J7 Acquisition Operations, Attn. Erik Smith, Contracting Officer, 5430 Mifflin Ave, New Cumberland, PA 17070-5008.
- (b)** The copy of any protest shall be received in the office designated above within one day of filing a protest with the GAO.

(End of Provision)

FAR 52.252-1 Solicitation Provisions Incorporated by Reference (FEB 1998)

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es):

FAR - <https://www.acquisition.gov/far-overhaul/far-part-deviation-guide/far-overhaul-part12>

DFARS - <https://www.acq.osd.mil/dpap/dars/dfarspgi/current/>

DLAD - <https://www.dla.mil/HQ/Acquisition/Policy-and-Directives/>

(End of Provision)

DLAD 5452.233-9001 Disputes - Agreement to Use Alternative Dispute Resolution (ADR) (JUN 2020)

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Part 12 Clauses (CONTINUED)

- (a) The parties agree to negotiate with each other to try to resolve any disputes that may arise. If unassisted negotiations are unsuccessful, the parties will use ADR techniques to try to resolve the dispute. Litigation will only be considered as a last resort when ADR is unsuccessful or has been documented by the party rejecting ADR to be inappropriate for resolving the dispute.
- (b) Before either party determines ADR inappropriate, that party must discuss the use of ADR with the other party. The documentation rejecting ADR must be signed by an official authorized to bind the contractor (see FAR 52.233-1), or, for the Agency, by the contracting officer, and approved at a level above the contracting officer after consultation with the ADR Specialist and legal counsel. Contractor personnel are also encouraged to include the ADR Specialist in their discussions with the contracting officer before determining ADR to be inappropriate.
- (c) If you wish to opt out of this clause, check here []. Alternate wording may be negotiated with the contracting officer.

(End of Provision)

SECTION 13: INSTRUCTIONS TO QUOTERS

Far 52.212-1 Instructions to Offerors - Commercial Products and Commercial Services (DEVIATION) (CD 2026-O00028)

ADDENDA TO FAR 52.212-1 Instructions to Offerors - Commercial Products and Commercial Services (DEVIATION) (CD 2026-O00028)

Reference paragraph (c) under referenced provision FAR 52.212-1. This paragraph is tailored to read as follows:

- (c) Period of acceptance of quotes.** The quoter agrees to hold the prices in its offer firm for **60 calendar days** from the date specified for receipt of quotes.

GENERAL

1. All quotes must be received electronically via email at: Deborah.L.Johnson@dla.mil Subject: SP3300-26-Q-0125 Quotation - "Quoter's Company Name." Quotations must be received by **10:00 AM EST on May 11, 2026** to be considered for award.
2. Facsimile and hard copy quote submissions will not be accepted or evaluated.
3. Quotes shall be prepared in the English language.
4. Quotes shall include all required documentation as listed below. The submission of a quote that does not contain all items requested below may result in elimination from consideration for award. The instructions contained herein are to serve as a guide in preparation of quotes; however, they are not intended to be all inclusive. The instructions generally describe the type and extent of information which should be provided in the quote. The quoter is expected to completely examine and analyze all aspects of **the technical, past performance, and price areas** to be addressed, and to include information in the quote which will enable the evaluators to determine the quoter's understanding of the requirements in each of the above

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Part 12 Clauses (CONTINUED)

areas.

5. Quotes must have the Controlled Unclassified Information (CUI) incorporated markings appropriate pages on each quote file.**(a) All other documents marked with appropriate CUI markings as follows:**

- Header on all pages: 1st Line of Header: “CUI”

- 1st page only, bottom right corner (above footer):

Controlled by: **Quoter's Name**

CUI Category: **SSEL**

Distribution/Dissemination Controls: **FED ONLY**

POC: **To be completed by Quoter**

- Footer (at very bottom) on all pages stating “CUI”

6. Quotes must include the following items:**TECHNICAL CAPABILITY****A. Technical Capability**

Quotations may be submitted in contractor format and shall include:

a. Manufacturer Name and Address

b. Manufacturer Part Number

B. The quoter must include descriptive literature or other documentation from the manufacturer which demonstrates the quoter's product meets the requirements of the material descriptions of the required supplies **(See Section Three: Description/PWS). The quoter must complete the table in Section Three and designate if their product meets (yes) or does not meet (no) the salient specifications. If the quoter's product does not meet the salient specification, the quoter must provide the alternate specification(s).**

PAST PERFORMANCE

The quoter shall provide information on its past performance record. If the quoter has no recent, relevant history in the Contractor Performance Assessment Reporting System (CPARS) application, Electronic Subcontract Reporting System

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Part 12 Clauses (CONTINUED)

(eSRS), or other databases, the quoter may submit up to three (3) recent (within three years), relevant (similar in scope, magnitude and complexity as outlined in the PWS) references to be evaluated. The references may be government or commercial contracts/projects and should include a point of contact, contract number, dollar value, and project information. If a quoter has no recent/relevant past performance, they shall provide the following statement in lieu of the information requested: "(Insert quoter name) has determined they possess no recent, relevant past performance in accordance with the RFQ."

PRICING AND ADMINISTRATIVE

a. The Price Quote shall be submitted in accordance with the Schedule of Supplies CLIN structure contained in **Section Two" Schedule of Supplies and Services** of the solicitation. **The quoter shall enter a Unit Price for each CLIN.** Prices Shall be rounded to the second decimal place.

b. **Representations and Certifications:** Quoter's are required to include a completed copy of the FAR provision 52.212-3 Offeror Representations and Certifications-Commercial Products and Commercial Services (DEVIATION) (CD 2025-O0003) (MAR 2025) with its quote or may indicate completion of the representations and certifications on the internet at <http://www.sam.gov>. Quoters are required to include a completed copy of FAR provision 52.219-1 Small Business Program Representations with their quote submission if not in SAM Representations and Certifications. Failure to include the certifications along with the quotation or to complete the certifications on the internet may result in elimination from consideration for award.

c. Company Name, Address, Point of Contact, Telephone number, and E-mail address.

d. Quoter's SAM Unique Entity ID and Commercial and Government Entity (CAGE) Code

e. Solicitation Number

f. Signed acknowledgements of amendments (applicable only if any amendments are issued against this solicitation)

7. **Organization:** The quoter shall prepare the quote as set forth in the table below. The titles and contents for each file are defined in this table. Quotes shall be submitted as **THREE (3)** separate files as follow:

File Title Page Limitations

I Technical Capability None

II Past Performance None

III Pricing & Administrative None

(End of Provision)

SECTION 14: EVALUATION

Addenda to FAR 52.212-2 Evaluation - Commercial Products and Commercial Services (DEVIATION) (CD 2026-O00028)

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Part 12 Clauses (CONTINUED)

1. The Government intends to award one (1) contract to the acceptable quoter with the lowest evaluated price which is deemed responsible in accordance with the FAR, and which has submitted a quote conforming to the solicitation requirements. The requirements include all stated terms, conditions, and all other requirements of this solicitation. The Government intends to make an award based on the initial quotes received; therefore, the initial quote should contain the quoter's best terms from a price and technical standpoint. Quoters must be determined to be responsible according to the standards of FAR Subpart 9 to be eligible for award.
2. Failure to provide a complete, detailed, realistic, and reasonable quote may reflect a lack of understanding of the requirements and may result in a determination that the quoter's quote is unacceptable. The Government does not assume a duty to search for clarification data to cure problems or inconsistencies with a quoter's quote.
3. The award decision process is being conducted under FAR Part 12, wherein the Contracting Officer is permitted to engage in communications with individual contractors about their quotes without being subject to the policies and procedures of FAR Part 15, and without engaging in "discussions" or "negotiations" under FAR Part 15.
4. Although the Government intends to award a Purchase Order resulting from this solicitation, the Government reserves the right to reject any and all quotes received and not award any item or items from this solicitation.
5. Technical Capability and Past Performance will be evaluated on an acceptable or unacceptable basis.

TECHNICAL CAPABILITY

The Government will evaluate the vendors Technical Capability to determine acceptability of the quote in response to this solicitation.

To be considered technically acceptable:

- The Quoter's supplies must meet the salient physical, functional, or performance specifications specified in this solicitation.

PAST PERFORMANCE

To be considered acceptable:

1. The quoter will be evaluated on their past performance record and any other relevant information obtained from available sources which may include CPARS, eSRS, Responsibility/Qualification reports in SAM, other databases, as well as interviews with POC references, Program Managers/Customers, Contracting Officers, or Contracting Officer Representatives (CORs), data submitted by the Quoter as part of the Past Performance file, and any other information available to determine the quality and relevance of the quoter's past performance.
2. The Government shall determine how well the quoter performed on the recent (within 3 years of solicitation issuance) and relevant (similar in scope, magnitude, complexity) contracts. The Government will assign an acceptable/unacceptable rating as to the quoter's ability to perform on the required effort based upon the recent and relevant past performance record considering the information available regarding quality of performance.
3. In the case of a quoter without a record or references of recent and relevant past performance, or for whom information on past performance is not available, or so sparse that no meaningful past performance rating can be reasonably assigned, the quoter may not be evaluated favorably or unfavorably on past performance (see FAR 15.305(a)(2)(iv), Past Performance Evaluation). Therefore, the quoter shall be determined to have unknown past performance. In the context of acceptability/unacceptability, "unknown" shall be considered "acceptable."
4. Should the Government discover adverse past performance information to which the quoter had not had a prior opportunity to respond, the Contracting Officer will conduct communications if deemed appropriate.

PRICE AND ADMINISTRATIVE

1. If a quote has been determined acceptable under each of the non-price factors listed above, the Government will then evaluate the quote for the lowest price. The quoted total price between quoters determined to be technically acceptable will be the

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Part 12 Clauses (CONTINUED)

- determining factor in the selection of a quote for award. Price analysis shall not be conducted on quoters determined to be unacceptable for award, since the quoter will not be in line for award as the lowest priced technically acceptable quoter. All CLINs must be priced.
- 2. The Government will perform a price analysis to determine the reasonableness of proposed price in accordance with the FAR 15.404-1(b). The Government will utilize a comparison of proposed prices received in response to the solicitation.
 - 3. A written notice of award or acceptance of a quoter mailed or otherwise furnished to the successful quoter within the time for acceptance specified in the quoter, shall result in a binding contract without further action by either party. Before the quoter's specified expiration time, the Government may accept a quote (or part of a quote), whether or not there are negotiations after its receipt, unless a written notice of withdrawal is received before award.

(End of Provision)

*******END OF THE SOLICITATION*******